

SENATE No. 238

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act extending live and simulcast horse racing in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>10/21/2025</i>

SENATE No. 238

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 238) of Paul R. Feeney for legislation to extend live and simulcast horse racing from one location to another venue, allowing people at different sites to watch and bet on the same race simultaneously. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act extending live and simulcast horse racing in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The first paragraph of section 12A of chapter 494 of the acts of 1978 is
2 hereby amended by striking out the words “and until December 15, 2025”, inserted by section 7
3 of chapter 26 of the acts of 2023, and inserting in place thereof the following words:- and until
4 December 15, 2026.

5 SECTION 2. The last paragraph of said section 12A of said chapter 494 is hereby
6 amended by striking out the words “December 15, 2025”, inserted by section 8 of said chapter
7 26, and inserting in place thereof the following words:- December 15, 2026.

8 SECTION 3. The introductory paragraph of section 13 of said chapter 494 is hereby
9 amended by striking out the words “and until December 15, 2025”, inserted by section 9 of said
10 chapter 26, and inserting in place thereof the following words:- and until December 15, 2026.

11 SECTION 4. Section 15 of said chapter 494 is hereby amended by striking out the words
12 “and until December 15, 2025”, inserted by section 10 of said chapter 26, and inserting in place
13 thereof the following words:- and until December 15, 2026.

14 SECTION 5. The first paragraph of section 9 of chapter 277 of the acts of 1986 is hereby
15 amended by striking out the words “and until December 15, 2025”, inserted by section 11 of said
16 chapter 26, and inserting in place thereof the following words:- and until December 15, 2026.

17 SECTION 6. The first sentence of the first paragraph of section 3 of chapter 114 of the
18 acts of 1991 is hereby amended by striking out the words “and until December 15, 2025”,
19 inserted by section 12 of said chapter 26, and inserting in place thereof the following words:- and
20 until December 15, 2026.

21 SECTION 7. The last paragraph of said section 3 of said chapter 114 is hereby amended
22 by striking out the words “December 15, 2025”, inserted by section 13 of said chapter 26, and
23 inserting in place thereof the following words:- December 15, 2026.

24 SECTION 8. The first paragraph of section 4 of said chapter 114 is hereby amended by
25 striking out the words “and until December 15, 2025”, inserted by section 14 of said chapter 26,
26 and inserting in place thereof the following words:- and until December 15, 2026.

27 SECTION 9. The last paragraph of said section 4 of said chapter 114 is hereby amended
28 by striking out the words “December 15, 2025”, inserted by section 15 of said chapter 26, and
29 inserting in place thereof the following words:- December 15, 2026.

SECTION 10. The first paragraph of section 5 of said chapter 114 is hereby amended by striking out the words “and until December 15, 2025”, inserted by section 16 of said chapter 26, and inserting in place thereof the following words:- and until December 15, 2026.

SECTION 11. Section 45 of chapter 139 of the acts of 2001 is hereby amended by striking out the words “December 15, 2025”, inserted by section 17 of said chapter 26, and inserting in place thereof the following words:- December 15, 2026.

SECTION 12. Section 20 of chapter 449 of the acts of 2006 is hereby amended by striking out the words “December 15, 2025”, inserted by section 18 of said chapter 26, and inserting in place thereof the following words:- December 15, 2026.

SECTION 13. Section 92 of chapter 194 of the acts of 2011 is hereby amended by striking out the words “December 15, 2025”, inserted by section 19 of said chapter 26, and inserting in place thereof the following words:- December 15, 2026.

SECTION 14. Section 112 of said chapter 194 is hereby amended by striking out the words “December 15, 2025”, inserted by section 20 of said chapter 26, and inserting in place thereof the following words:- December 15, 2026.

SECTION 15. Section 74 of chapter 10 of the acts of 2015 is hereby amended by striking out the words “December 15, 2025”, inserted by section 21 of said chapter 26, and inserting in place thereof the following words:- December 15, 2026.

SECTION 16. Section 23 of chapter 26 of the acts of 2023 is hereby repealed.

SECTION 17. Notwithstanding section 2 of chapter 128A of the General Laws, sections 1, 2, 2A and 4 of chapter 128C of the General Laws and section 9 of said chapter 128C, as

inserted by section 6 of chapter 173 of the acts of 2022, or any other general or special law to the contrary, the running race horse meeting licensee located in Suffolk county licensed to conduct live racing pursuant to said chapter 128A and simulcast wagering pursuant to said chapter 128C in calendar year 2025 shall remain licensed as a running horse racing meeting licensee and shall remain authorized to conduct simulcast wagering pursuant to said chapter 128C until December 15, 2026; provided, however, that the days between January 1, 2025 and December 31, 2026 shall be dark days pursuant to said chapter 128C and the licensee shall be precluded from conducting live racing during that period unless it applies for and is granted a supplemental live racing license pursuant to said chapter 128A; provided further, that the licensee shall not simulcast or accept a wager on greyhound dog racing on or after August 10, 2023 pursuant to section 9 of chapter 128C of the General Laws; provided further, that all simulcasts shall comply with the Interstate Horse Racing Act of 1978, 15 U.S.C. 3001 et seq. or other applicable federal law; provided further, that all simulcasts from states which have racing associations that do not require approval in compliance with the Interstate Horse Racing Act of 1978, 15 U.S.C. 3004(a)(1)(A) shall require the approval of the New England Horsemen's Benevolent & Protective Association prior to being simulcast to a racing meeting licensee within the commonwealth; and provided further, that if the association agrees to approve the simulcast for a racing meeting licensee, it shall approve the simulcast for all otherwise eligible racing meeting licensees.